

## 25STLC07283 25STLC07283

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-13

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Case Number: 25STLC07283 Hearing Date: July 13, 2026 Dept: 25

HEARING DATE: Mon., July 13, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Ly

v. Racca COMP FILED: 09-23-25

CASE NUMBER: 25STLC07283

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE; ALTERNATIVE REQUEST FOR LEAVE TO CONDUCT ADDITIONAL DISCOVERY

MOVING PARTY:

Defendant/Cross-Complainant Jason

Racca

RESP. PARTY: Plaintiff/Cross-Defendant

Jazmine Ly

MOTIONS TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS; REQUEST TO CONDUCT ADDITIONAL DISCOVERY

(Code Civ. Proc., §§ 95, 2031.310)

TENTATIVE RULING:

The

Court DENIES Jason Racca's motion to compel further responses to requests for production of documents.

The

Court DENIES Racca's request for leave to conduct additional discovery.

Racca is  
to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

June 29, 2026 ☐ Late ☐ None

REPLY: Filed

July 2, 2026 ☐ Late ☐ None

ANALYSIS:

Jazmine Ly and Jason Racca are litigating over ownership and possession of a dog. Racca propounded discovery, including requests for production of documents, on Ly. Ly responded; Racca now moves to compel further responses to several of his requests. The Court DENIES the motion.

The Court notes that the motion was not served and filed at least 16 court days, plus five calendar days—for service by mail—before this hearing date. (Code Civ. Proc., § 1005, subd. (b).) The deadline to file and serve the motion was June 12, 2026. It was not served until June 18 and not filed until June 22. Regardless, Racca's motion fails on its merits.

Code of Civil Procedure section 94 constrains

discovery in limited jurisdiction actions to any combination of 35 interrogatories with no subparts, demands to produce documents, and requests for admission with no subparts. (Code Civ. Proc., § 94, subd. (a).) Racca has propounded a total of 72 discovery requests on Ly: 40 requests for admission, 22 special interrogatories, and 10 requests for production. The Court will not grant a motion to compel discovery that was propounded in violation of the Code of Civil Procedure.

Anticipating this problem, Racca asks the Court to authorize his additional discovery under to Code of Civil Procedure section 95. That section authorizes a court, on noticed motion and subject to such terms and conditions as are just, to allow a party to conduct additional discovery—but only on a showing that the party will be unable to prosecute or defend the action effectively without the additional discovery. (Id. § 95, subd. (a).) In deciding whether to allow additional discovery, a court must whether the moving party has used all applicable discovery in good faith, and whether the party has attempted to secure the additional discovery by stipulation or by means other than formal discovery. (Ibid.) Racca has not sufficiently shown he is entitled to additional discovery. For one, propounding discovery requests in excess of the limit, and then requesting relief under section 95, is not proper procedure. Further, as Ly observes in opposition, there may be alternate ways for Racca to obtain the discovery he is seeking from Ly.

Racca is to give notice.